Agreement Number: 00260533.0

MAIN COUNTRY AGREEMENT
CHILE

This Main Country Agreement [country name] (the "**MCA (CL)**" which also may be referred to as "**MCA**") is entered into on Jul 14, 2025 (the "**Effective Date**") by and between the undersigned customer ("**Customer**") and **Equinix Chile SpA**, a company registered in Chile and whose principal place of business is Avenida Apoquindo 2929, Las Condes, Santiago, Chile ("**Equinix**"). Customer and Equinix may be referred to collectively as "**Parties**" or individually as a "**Party**".

Whereas, Equinix Inc. and Telefonica SA established a Master Services Agreement dated January 13, 2025, that specifies the terms and conditions by which Telefonica SA or its Affiliates may purchases Licensed Space and Services from Equinix or its Affiliates.

Whereas, in the light of this Master Services Agreement the Parties wish to enter into this MCA (CL) pursuant to which Customer may order Licensed Space and Services in Chile from Equinix.

In consideration of the mutual covenants and terms and conditions set out below, Equinix and Customer agree as follows:

1. With Effective Date, This MCA (CL) replaces and supersedes any existing master services agreement or similar agreement ("the Legacy Agreement") between Customer and Entel or its affiliates (collectively "Entel") to the extent that such Legacy Agreement relates to colocation services in an IBX Center acquired from Entel by Equinix on or around March 17, 2022. The Parties are currently collaborating to clarify all colocation services eventually assigned by Entel to Equinix. Once these services are fully determined, the Parties will sign one or more Orders to formalize the regulation of these services.

   If applicable, any order or request related to a specific installation (including, but not limited to, Service Orders, Colocation Service Orders, and Statements of Work, Tasks, and Projects (SOW)) will continue and will now be governed by this MCA (CL). Additionally, if any of these orders do not specify a renewal term, the Parties agree that the orders will automatically renew on a month-to-month basis, unless one of the Parties terminates the order by providing the other Party with a written notice of non-renewal ninety (90) days prior to the expiration of the current term. It is clarified that the Legacy Agreement will have no further force or effect.

   The Parties declare that if there are any colocation services agreed upon between Entel and the Customer that are assigned to Equinix in the future, they will be governed by the rules of this MCA (CL) in the same manner as the Assigned Services.

2. This MCA (CL) incorporates the Global Terms and Conditions attached as Attachment A ("**GTCs**") and all other attachments to this MCA (CL). The term "Agreement" as used in this MCA (CL) and in the GTCs shall mean this MCA (CL) and everything incorporated by reference into this MCA (CL) and in the GTCs, including the Policies and all Orders. Capitalized terms used but not defined in this MCA (CL) shall have the meaning ascribed to them in the GTCs.

   For the avoidance of any doubt, any and all pre-printed standard terms (e.g., on a purchase order, order acknowledgement, or invoice, or in the GEP portal) shall not have any applicability unless the other Party has expressly accepted the relevant term in writing. The Parties agree to negotiate how to deal with additional documents presented by the relevant Telefonica entity during the order process

   a. The terms and conditions set forth in the GTCs are hereby incorporated by reference into this MCA CL, adding a clause on COMPLIANCE WITH ANTI-CORRUPTION LAWS and COMPLIANCE CLAUSE LAW No. 20.393:

      1) **COMPLIANCE WITH ANTI-CORRUPTION LAWS**

      1.1 Each Party hereby represents, warrants and covenants that:

      (a) Each Party and any of its controlling entities or persons, affiliates, partners, officers, directors, employees and agents involved in the Relevant Undertaking[1] will comply at all times in connection with and throughout the course of the Relevant Undertaking (if applicable, including upon acquisition of the products and/or contents that are relevant for the supply of goods or rights and/or for the provision of the services subject to this agreement), with all applicable laws, statutes, regulations and codes relating to combating corruption, including without limitation the United States Foreign Corrupt Practices Act (collectively, "Anti-Corruption Laws");

      (b) In connection with the Relevant Undertaking, neither Party nor any of its controlling entities or persons, affiliates, partners, officers, directors, employees or agents will offer, promise or give, nor have they, as at the effective date, offered, promised, or given money or anything of value, directly or indirectly, to (i) any "Government Official[2]" in order

[1] "Relevant Undertaking" means the subject matter of this MCA.

[2] Government Official" includes anyone working for or on behalf of a national, state, provincial or local government department, body, agency or other government entity (including government-owned or controlled companies) or any public international organization. The term also includes

to influence official action or otherwise obtain an improper advantage; (ii) any other person while knowing that all or any portion of the money or thing of value will be offered or given to a Government Official in order to influence official action or otherwise obtain an improper advantage, or (iii) any other person in order to induce him or her to act disloyally or otherwise improperly;

(c) Each Party will keep and maintain accurate and reasonably detailed books and financial records in connection with this agreement and the Relevant Undertaking;

(d) Each Party has and shall maintain in place throughout the term of this agreement its own policies or procedures to ensure compliance with Anti-Corruption Laws, sufficient to provide reasonable assurances that violations of Anti-Corruption Laws will be prevented, detected and deterred;

(e) If a Party has substantial evidence to suspect the other Party is not materially in compliance with this Sections COMPLIANCE WITH ANTI-CORRUPTION LAWS and COMPLIANCE CLAUSE LAW No. 20.393, it shall be entitled to request the other Party to provide supporting documentation, subject to the same confidentiality obligations agreed in the GTCs and not encompassing any access to confidential or proprietary information, for the sole purpose of demonstrating the other Party's compliance with this Section, including processes to ensure monitoring compliance there of as it relates to the performance of this MCA. Each Party shall cooperate in good faith to the extent possible and reasonable to facilitate any document request pursuant to this Section. Each Party reserves the right to require the breaching Party to consider taking appropriate remedial actions;

(f) Each Party's representations, warranties and covenants in this Section 1.1 extend equally, for the avoidance of doubt, to of its subsidiaries, officers, directors, employees, agents, representatives, and subcontractors acting on behalf of either Party in connection with the Relevant Undertaking, and Each Party has taken reasonable steps to ensure their compliance;

(g) Each Party may request the other to certify its compliance with specific and reasonably detailed aspects of this Section 1.1 periodically. The requested Party shall only be obligated to provide such certification for requests that are objectively reasonable in scope and detail.

1.2 Breaches

(a) Notwithstanding any other provision in this MCA, each Party reserves the right to terminate this MCA immediately upon written notice if it reasonably determines that the other Party is not in compliance with this Section. 2. COMPLIANCE CLAUSE LAW No. 20,393

In accordance with Law No. 20,393, which establishes the criminal liability of legal entities for the crimes referred to in article 1 of said the aforementioned law, each Party hereby declares that the company, its legal representatives, partners, shareholders, collaborators and other natural persons under their supervision, are aware of the obligations, prohibitions, sanctions and other regulations contemplated in the Applicable Law. In addition, the Customer declares that it has established the Telefónica Group's Crime Prevention Model in Chile, its whistleblower channel and the Supplier Policy and Contract Conditions, regulations that are available on the website www.telefonicachile.cl. On the other hand, Equinix declares that it has established its Code Of Business Conduct, available in https://codeofbusinessconduct.equinix.com/.

Each Party is obliged to adopt its own control measures to prevent, avoid and detect situations related to the crimes of Law No. 20,393, which could be committed within the framework of its activity by or with the intervention of any natural person who occupies a function or position in it, or provides services to it by managing its affairs before third parties.

The Customer provides Equinix the whistleblower channel of the Telefónica Group companies in Chile to report any violation of the law, as well as any illicit conduct or operation in the celebration or execution of the contract, of which it is aware and that may constitute any of the crimes contemplated in Law No. 20,393. At the same time, each Party declares not to maintain judicial proceedings, whether they are in process or completed by means of an enforceable resolution, related to the crimes indicated in article 1 of Law No. 20,393.

Failure to comply with the provisions of this clause shall be subject to the general liability regime for non-compliance as established in the MSA.

b. The GTCs are amended to replace Section 2.b. of the GTCs with the following language:

"Customer may, in good faith, dispute an invoice or any part thereof (a "Disputed Amount") within eight (8) days from the date of receipt of the initial invoice on which the Disputed Amount appears, in accordance with the terms and conditions of Law 19.983. Furthermore, in the event that Customer exercises this right, Customer will provide Equinix written notice of such dispute along with reasonable supporting documentation within the same eight (8) days period, failing which Customer waives all rights to dispute such Disputed Amount and to file any claim. The Parties will work together in good faith to resolve the Disputed Amount within thirty (30) days after receipt of Customer's notice by Equinix".

3. This Agreement will be governed in all respects by the internal laws of the Republic of Chile without regard to its conflict of law provisions.
4. **Conflict Resolution.**

political parties, party officials and candidates for political office.

a. Arbitration**.** The Parties agree that any and all disputes, controversies and/or claims arising out or relating in any way to the Agreement, for any reason and under any circumstance, related directly or indirectly to this Agreement, or to any of its sections, will be exclusively resolved by legal and binding arbitration (the "**Arbitration**"). The Arbitration shall be conducted in accordance with the Arbitration Procedural Rules of the Arbitration and Mediation Center of the Santiago Chamber of Commerce (the "**Arbitration Center**") in force at the time of the commencement of the Arbitration (the "**Rules**"). The Parties understand that by agreeing to Arbitration under the Rules, the Parties have accepted that the Arbitration be administered by the Arbitration Center.

b. Arbitrator. The Arbitration shall be conducted by one (1) arbitrator (the "**Arbitrator**"). The Parties grant the Santiago Chamber of Commerce the irrevocable authority to, at the written request of either Party, appoint the Arbitrator from the list of members of the arbitration body of the Arbitration Center. The Arbitrator will act as an arbitrator-at-law as regards the substance of the merits of the dispute and an arbitrator *ex aequo et bono* as regards the procedure.

c. The place of Arbitration will be the city of *Santiago de Chile, Republic of Chile*, the language of the Arbitration will be Spanish, and the Arbitration will comply with Applicable Law. The Arbitrator's award will be final and legally binding in all respects, and there will be no appeal therefrom (the "**Arbitrator's Award**").

d. The provisions contained in this Section 4 do not preclude the Parties from seeking injunctive relief or other pre-sentencing measures from the courts, when available, for any purpose, including without limitation, an injunction to ensure the subsequent execution of the Arbitrator's Award ("**Measures**"). For the exclusive purpose of obtaining Measures, the Parties each irrevocably agree to the exclusive jurisdiction of the courts of Santiago de Chile, Republic of Chile and waive any right to bring any action against the other Party in any other jurisdiction or courts. If any legal action to obtain Measures is brought by either Party, the prevailing Party will be entitled to an award of its reasonable attorneys' fees and costs. Recourse to the aforementioned courts per this Section 4.d., will not be construed as a waiver of Arbitration.

Executed as an Agreement, which shall not take effect until signed by both Parties below

Customer to complete:

Customer warrants and represents that the individual signing below has full authority to execute this Agreement on behalf of Customer.

Customer Name: Telefónica Chile S.A.
(*Complete Legal Name*)

Authorized Signature: Gladys Fuentes Espinoza

Printed Name: Gladys Fuentes Espinoza

Title: Directora Secretaría General

Street address for notices (including legal notices):
Avenida Providencia 111

Providencia

Phone: 56993212521

Facsimile number:

Electronic mail address:
gladys.fuentes@telefonica.com

Equinix to complete:

Equinix warrants and represents that the individual signing below has full authority to execute this Agreement on behalf of Equinix.

Equinix Chile SpA

Authorized Signature:

Printed Name: FRANCISCO BASOALTO

Title: Managing Director

Street address for notices (including legal notices):
Address for notices:

Managing Director
Equinix [local entity]
[legal address]

With a copy to:
[additional address]

Attachment A

Global Terms and Conditions

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